

SEPTEMBER 6, 2023

1:30 P.M.

22CF13915	CROWN ASSET MANAGEMENT, LLC v. COTTA	We are on calendar for an OSC RE: PLAINTIFF'S FAILURE TO OBTAIN DEFAULT JUDGMENT WITHIN 360 DAYS. [CRC 3.740]. Proof of Service was filed Sept. 14, 2022 but no further action to obtain default or default judgement is noted in file. By notice sent Sept. 9, 2022 to plaintiff's attorney they are required to appear and show cause why sanctions should not be imposed. Sanctions may include dismissal of the action or monetary fines. The next Case Management Conference (CMC) is set for January 3, 2024 at 1:30 pm in Dept. 4.
22CV46119	DVORAK v. BORS	Upon review of the CMC statements, it appears that parties are continuing to conduct discovery. The CMC Statements propose trial dates that include dates already passed, and all contain references to additional discovery. A Mandatory Settlement Conference can be set for February 26, 2024 in Dept. 2 at 8:30 am
22CF13855	GALAXY INTERNATIONAL PURCHASING, LLC v. HARDEN	We are on calendar for an OSC RE: PLAINTIFF'S FAILURE TO OBTAIN DEFAULT JUDGMENT WITHIN 360 DAYS. [CRC 3.740]. Proof of Service was filed July 27, 2022 but no further action to obtain default or default judgement is noted in file. By notice sent July 6, 2023 to plaintiff's attorney they are required to appear and show cause why the sanction of Dismissal should not be imposed. No action pursuant to California Rules of Court, Rule 3.740(f) has been taken, nor Case Management Conference Statement or Response to OSC filed. Therefore, this matter is DISMISSED without prejudice.
18CV42965	SWIFT FINANCIAL CORP. v. COUNTRY HAVEN INC.	Plaintiff was provided notice of this hearing on July 27, 2023. This matter was not brought to trial within five-years of its filing. Therefore, this matter is DISMISSED with prejudice.
20CV44947	UNTRAUER v. MORAD	The parties participated in a Mandatory Settlement Conference held on March 13, 2023, resulting in a settlement agreement (attested to on Minute Order). Per this Court's ruling, Plaintiffs are to have their surveyor create a legal description of property lines for easement purposes. Surveyor has run into issues relative to survey and asked Court to continue OSC hearing an additional 45 days to July 19, 2023. Parties to complete the survey and record appropriate easement deed. The next Case Management Conference (CMC) is set for January 10, 2024 at 1:30 pm in Dept. 4.